

23SMCV05956 23SMCV05956

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is a motion by defendant to compel plaintiff's deposition. There is a motion for protective order set for September, but this motion will moot out that one.

Defendant contends that plaintiff has refused to be deposed and is just delaying things. Plaintiff argues that such is not the case. Plaintiff says that plaintiff first tried to depose defendants but could not get dates. Plaintiff would also like to be sure that there is only one plaintiff's deposition even though there are two related cases—in other words, all defendants would depose him at the same time rather than doing it twice. Plaintiff initially said that no dates would be set for deposition unless the defense agreed to those terms. In any event, after the motion was filed, plaintiff agreed to be deposed on July 31, 2026, and there are no issues with any of the other dates.

The court is inclined to agree with plaintiff that the motion is moot to a point. The court will not start borrowing trouble when the date has been set, but the motion is GRANTED to the extent that plaintiff is ORDERED TO BE DEPOSED ON JULY 31, 2026. The court issues the order so that if plaintiff fails to appear, plaintiff will be in violation of the court's order. The court notes, though, that whether the court would actually sanction plaintiff should plaintiff not appear might well depend on whether the depositions set for the prior dates go forward.

The court has some sympathy for the one deposition not two argument. And the court cannot really fault plaintiff for wanting to insist on that if possible. As to priority, while the Code of Civil Procedure does not recognize it, the Litigation Guidelines discourage stealing a march by noticing a deposition to pre-date a near-term deposition already on the calendar. And plaintiff wanted to get responses to certain written discovery before being deposed. While plaintiff does not have such a right, again, orderly conduct suggests that it is not unreasonable for plaintiff to want to have the benefit of discovery already served before being deposed. But, thankfully, it appears that the issue has been solved.

Everyone wants sanctions.

But no one's position was unjustified.

Because all parties had substantial justification for their respective positions, the sanctions requests are all DENIED. The motion now set for September 17, 2026, is VACATED AS MOOT. The court is hoping that this will be the last discovery motion the court will hear, at least on procedural stuff.